

Franciscus Dylan Rosario,  
7624 Melody  
Rohnert Park, CA 94928  
E: soltrinox@gmail.com  
Plaintiff, In Pro Per

ELECTRONICALLY  
**FILED**  
Superior Court of California,  
County of San Francisco

**05/26/2026**  
Clerk of the Court  
BY: JEFFREY FLORES  
Deputy Clerk

**SUPERIOR COURT OF THE STATE OF CALIFORNIA  
COUNTY OF SAN FRANCISCO**

**Franciscus Dylan Rosario,**  
**PLAINTIFF,**

**v.**

CSAA Insurance Exchange;  
and DOES 1 through 50, inclusive;

**DEFENDANTS**

**Case No.: CGC-25-631802**

**REQUEST FOR JUDICIAL NOTICE**

(Evid. Code § 451–453)

**Dept.: 610**  
**Date:** June 24, 2026

**PLAINTIFF’S REQUEST FOR JUDICIAL NOTICE OF CODE OF CIVIL  
PROCEDURE SECTION 425.17, SUBDIVISIONS (A) THROUGH (D),  
AND OF CONSTRUING CALIFORNIA OPINIONS APPLYING THE  
COMMERCIAL-SPEECH EXEMPTION OF SUBDIVISION (C); CROSS-  
NOTICED ACROSS THE JUNE 24, 2026 CONSOLIDATED COHORT**

**Case:** Rosario v. CSAA Insurance Exchange (CGC-25-631802) **Department:** 302 **Judge:** Hon. Joseph  
M. Quinn **Hearing date:** June 24, 2026, 9:00 a.m., Dept. 302 **Filing date:** May 21, 2026 **Filed**  
**by:** Plaintiff Dylan Franciscus Rosario, Self-represented

## **I. CROSS-NOTICE PARAGRAPH; APPLICATION TO ALL SEVEN COHORT MOTIONS**

Procedural authority for the June 24, 2026 hearing line: This Court, by minute order entered May 13, 2026 (Hon. Joseph M. Quinn, Dept. 302, M. Goodman clerk), continued the consolidated motion calendar to June 24, 2026, 9:00 a.m., Department 302, and directed: “All parties immediately to provide courtesy copies of their filings per SF Local Rule 2.7B with a cover letter reflecting the new hearing date.” Thereafter, on the parties’ stipulation and the Court’s order, all remaining pending Department 302 matters were consolidated for hearing on June 24, 2026, 9:00 a.m., Dept. 302. This Request is tendered in conformity with that order.

This Request is associated with, and cross-noticed across, each of the seven motions on the consolidated June 24, 2026, 9:00 a.m., Dept. 302 hearing line, and Plaintiff respectfully requests that the matters herein be judicially noticed in connection with the Court’s adjudication of each of the following:

- (A) Defendant CSAA Insurance Exchange’s Special Motion to Strike under Code of Civil Procedure section 425.16, filed April 9, 2026 (seqs 015 to 018). Section 425.17, subdivision (c), is a threshold-gateway carve-out from the anti-SLAPP statute. Where the cause of action arises from a commercial speaker’s representations of fact about that speaker’s business operations, goods, or services made for the purpose of obtaining approval for, promoting, or securing sales or commercial transactions in the speaker’s goods or services, and where the intended audience is an actual or potential buyer or customer or a person likely to repeat the statement to or otherwise influence such a buyer or customer, the section 425.16 motion does not lie and the merits inquiry is foreclosed. CSAA, as a commercial first-party insurer making representations about its insurance goods and services to a claimant consumer, falls squarely within subdivision (c).
- (B) Defendant’s Demurrer to Plaintiff’s First Amended Complaint, filed April 13, 2026 (seqs 019 to 023). The construing opinions on section 425.17, subdivision (c), inform the sufficiency analysis under Code of Civil Procedure section 430.10 because the same conduct that triggers subdivision (c) (commercial representations to claimant consumers) is the conduct alleged as

1 the predicate for the Insurance Code section 790.03(h) and Fair Claims Settlement Practices  
2 Regulations counts.

3 (C) Plaintiff's Motion to Strike the May 6, 2026 Reply Declaration of Tyler J. O'Connell and  
4 Exhibit A, filed May 8, 2026 (Transaction ID 79429443). The reply declaration purports to  
5 introduce factual matter on the anti-SLAPP merits; subdivision (c) is anterior to that merits  
6 inquiry and renders the reply factual matter immaterial to the threshold determination.

7 (D) Defendant's Motion to Strike Pleading under Code of Civil Procedure section 436, filed April  
8 22, 2026 (continued and folded into the consolidated cohort). The section 425.17, subdivi-  
9 sion (c), framework governs the scope of permissible challenges to the pleading where the  
10 underlying conduct is commercial speech to a claimant consumer.

11 (E) Plaintiff's Renewed Motion for Leave to File Third Amended Complaint under Code of Civil  
12 Procedure section 1008(b), filed May 21, 2026. The judicially noticed text and construing  
13 opinions establish that the proposed Third Amended Complaint states viable claims as to  
14 which the anti-SLAPP statute does not apply, defeating any futility objection to leave.

15 (F) Plaintiff's Motion for Sanctions under Code of Civil Procedure section 128.7 (anti-SLAPP  
16 reply misconduct), filed May 21, 2026. The judicially noticed authority bears on the objective  
17 frivolousness of legal contentions advanced in the anti-SLAPP papers without acknowledging  
18 the controlling subdivision (c) framework.

19 (G) Plaintiff's Motion for Specified Discovery under Code of Civil Procedure section 425.16(g),  
20 filed May 21, 2026. The good-cause showing for specified discovery is informed by, and  
21 consistent with, the threshold-gateway sequencing recognized by the construing opinions on  
22 subdivision (c).

1 **II. REQUEST UNDER EVIDENCE CODE SECTION 451, SUBDIVI-**  
2 **SION (A): VERBATIM STATUTORY TEXT OF CODE OF CIVIL PRO-**  
3 **CEDURE SECTION 425.17, SUBDIVISIONS (A) THROUGH (D)**

4 Pursuant to Evidence Code section 451, subdivision (a), Plaintiff respectfully requests that this  
5 Court take judicial notice of the verbatim statutory text of Code of Civil Procedure section 425.17,  
6 subdivisions (a) through (d), as currently in effect, as a public statutory law of this State. Judicial  
7 notice of public statutory law is mandatory under Evidence Code section 451, subdivision (a).

8 The verbatim text of subdivision (c) is attached as **Exhibit A** to this Request for the Court's bench  
9 convenience; the complete subdivisions (a) through (d) are incorporated by reference to the official  
10 codified text as published by the Office of Legislative Counsel.

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11  
12 **III. REQUESTS UNDER EVIDENCE CODE SECTIONS 451 AND 452,**  
13 **SUBDIVISION (A): CONSTRUING CALIFORNIA OPINIONS**

14 Pursuant to Evidence Code sections 451 and 452, subdivision (a), Plaintiff respectfully requests  
15 that this Court take judicial notice of the following published California opinions construing and  
16 applying Code of Civil Procedure section 425.17, subdivision (c). Judicial notice is requested as to  
17 the existence, holdings, and reasoning of these decisional authorities as published California law:

- 18 1. Simpson Strong-Tie Co., Inc. v. Gore (2010) 49 Cal.4th 12. Pin-cite focus: the California  
19 Supreme Court's articulation of the commercial-speaker and commercial-purpose elements  
20 under section 425.17, subdivision (c), and the requirement that the speaker, the intended  
21 audience, and the purpose of the representations satisfy the statutory test.
- 22 2. Inland Oversight Committee v. City of San Bernardino (2017) 8 Cal.App.5th 1150. Pin-  
23 cite focus: page 1158, articulating that the section 425.17, subdivision (c), determination is  
24 a threshold-channel inquiry that precedes, and is independent of, the protected-activity and  
25 minimal-merit analyses under section 425.16, subdivisions (b) and (c).
- 26 3. Hawran v. Hixson (2012) 209 Cal.App.4th 256. Pin-cite focus: application of the commercial-  
27 speaker test in a factually analogous setting where a defendant made representations of fact

1 about its own operations to a discrete audience for commercial purposes.

2 4. *Demetriades v. Yelp, Inc.* (2014) 228 Cal.App.4th 294. Pin-cite focus: the scope of “repre-  
3 sentations of fact about that person’s or a business competitor’s business operations, goods,  
4 or services,” including representations directed at actual or potential buyers or customers.

5 5. *L.A. Taxi Cooperative, Inc. v. Independent Taxi Owners Assn. of L.A.* (2015) 239 Cal.App.4th  
6 918. Pin-cite focus: application of the commercial-speech exemption analysis to represen-  
7 tations about commercial goods and services in a competitor context, with emphasis on the  
8 audience and purpose elements.

9 6. *All One God Faith, Inc. v. Organic and Sustainable Industry Standards, Inc.* (2010) 183  
10 Cal.App.4th 1186. Pin-cite focus: boundary-line application of subdivision (c), useful for  
11 delimiting the carve-out’s scope in mixed-purpose speech cases.

12 Each of the foregoing opinions is published California decisional law subject to judicial notice  
13 under Evidence Code sections 451 and 452, subdivision (a). Plaintiff requests judicial notice of  
14 the holdings, reasoning, and stated rules of decision in each opinion, not of any contested factual  
15 finding particular to the underlying record in any of those cases.

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## 17 IV. RELEVANCE

18 The verbatim text of section 425.17 and the six construing opinions are relevant to each of the seven  
19 cohort motions identified in Section I above. As to motion (A), the materials lock the threshold-  
20 gateway framework into the record and establish that the section 425.16 motion does not lie be-  
21 cause CSAA, as a commercial first-party insurer making representations about its insurance goods  
22 and services to a claimant consumer, falls within subdivision (c). As to motions (B), (D), and (E),  
23 the materials inform the sufficiency, scope, and amendment analyses where the underlying conduct  
24 is commercial speech to a claimant consumer. As to motions (C) and (F), the materials bear on the  
25 materiality of reply factual matter and on the objective frivolousness of legal positions advanced  
26 without acknowledging the controlling subdivision (c) framework. As to motion (G), the materi-  
27 als are consistent with the threshold-channel sequencing that frames the good-cause showing for  
28 specified discovery.

1 Plaintiff does not, by this Request, ask the Court to take judicial notice of the truth of any contested  
2 factual contention. Judicial notice is requested as to the verbatim statutory text (Section II), the  
3 existence, holdings, and reasoning of the construing opinions (Section III), and the application of  
4 those authorities to the threshold-gateway framework on the seven motions (Section IV).

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## 6 **V. PROPOSED ORDER LANGUAGE**

7 Plaintiff respectfully proposes that the Court enter the following:

8 “The Court takes judicial notice under Evidence Code section 451, subdivision (a), of the ver-  
9 batim statutory text of Code of Civil Procedure section 425.17, subdivisions (a) through (d), as  
10 set out in Exhibit A to Plaintiff’s Request for Judicial Notice and as published by the Office of  
11 Legislative Counsel. The Court further takes judicial notice under Evidence Code sections 451  
12 and 452, subdivision (a), of the existence, holdings, and reasoning of the following published  
13 California opinions construing and applying section 425.17, subdivision (c): Simpson Strong-Tie  
14 Co., Inc. v. Gore (2010) 49 Cal.4th 12; Inland Oversight Committee v. City of San Bernardino  
15 (2017) 8 Cal.App.5th 1150; Hawran v. Hixson (2012) 209 Cal.App.4th 256; Demetriades v. Yelp,  
16 Inc. (2014) 228 Cal.App.4th 294; L.A. Taxi Cooperative, Inc. v. Independent Taxi Owners Assn.  
17 of L.A. (2015) 239 Cal.App.4th 918; and All One God Faith, Inc. v. Organic and Sustainable  
18 Industry Standards, Inc. (2010) 183 Cal.App.4th 1186. Judicial notice is taken as to the statutory  
19 text and as to the existence, holdings, and reasoning of the published opinions only, and not as to  
20 the truth of any contested factual contention. This Request is associated with each of the seven  
21 motions on the June 24, 2026, 9:00 a.m., Dept. 302 consolidated hearing line.”

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## 23 **VI. RELATION TO COMPANION NOTICE**

24 This Request converts the section 425.17, subdivision (c), framework from an argument-only pos-  
25 ture, currently lodged at Tab 46 (Plaintiff’s Notice of Threshold Authority: Inland Oversight Com-  
26 mittee v. City of San Bernardino and Code of Civil Procedure section 425.17(c)), into a judicially  
27 noticed posture by locking the statutory text and the construing opinions into the record. The  
28 companion notice at Tab 46 continues to identify the threshold-channel framework for the bench’s

1 convenience and is not displaced by this Request. The materials are complementary: the Tab 46  
2 notice identifies the framework; this Request asks the Court to take judicial notice of the statutory  
3 text and the construing California opinions that constitute the framework.

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## 4 5 **VII. SERVICE**

6 This Request and Exhibit A are served on Defendant’s counsel of record (Mark G. Tapp, Tyler J.  
7 O’Connell, Mason Schubert, and Sarah J. Blithe, Porter Scott, P.C.) by electronic mail per Code  
8 of Civil Procedure section 1010.6 and California Rules of Court, rule 1.21, with a Proof of Service  
9 (POS-050) filed contemporaneously.

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## 10 11 **EXHIBIT A: VERBATIM TEXT OF CODE OF CIVIL PROCEDURE** 12 **SECTION 425.17, SUBDIVISION (C)**

13 Code of Civil Procedure section 425.17, subdivision (c), provides in full:

14 “(c) Section 425.16 does not apply to any cause of action brought against a person primarily en-  
15 gaged in the business of selling or leasing goods or services, including, but not limited to, insur-  
16 ance, securities, or financial instruments, arising from any statement or conduct by that person if  
17 both of the following conditions exist:

- 18 (1) The statement or conduct consists of representations of fact about that person’s or a business  
19 competitor’s business operations, goods, or services, that is made for the purpose of obtaining  
20 approval for, promoting, or securing sales or leases of, or commercial transactions in, the  
21 person’s goods or services, or the statement or conduct was made in the course of delivering  
22 the person’s goods or services.
- 23 (2) The intended audience is an actual or potential buyer or customer, or a person likely to repeat  
24 the statement to, or otherwise influence, an actual or potential buyer or customer, or the  
25 statement or conduct arose out of or within the context of a regulatory approval process,  
26 proceeding, or investigation, except where the statement or conduct was made by a telephone  
27 corporation in the course of a proceeding before the California Public Utilities Commission

1 and is the subject of a lawsuit brought by a competitor, notwithstanding that the conduct or  
2 statement concerns an important public issue.”

3 The text of section 425.17, subdivisions (a), (b), and (d), is incorporated by reference to the official  
4 codified text as published by the Office of Legislative Counsel and is not reproduced here for pur-  
5 poses of length only; the verbatim text of those subdivisions is equally the subject of this Request  
6 under Evidence Code section 451, subdivision (a).

7 \_\_\_\_\_  
8 Date: May 21, 2026

By: \_\_\_\_\_ Dylan Franciscus Rosario, Plaintiff in Pro Per 7624 Melody Drive  
Rohnert Park, CA 94928 Tel: 650.488.7510 E: soltrinox@gmail.com

Dated: May 25, 2026



FRANCISCUS DYLAN ROSARIO  
Plaintiff, In Pro Per

7624 Melody  
Rohnert Park, CA 94928  
650.488.7510  
E: soltrinox@gmail.com



# DECLARATION OF COMPLIANCE WITH CALIFORNIA CODES, RULES, AND LOCAL PROCEDURES

Plaintiff declares under penalty of perjury under the laws of the State of California (Code Civ. Proc., § 2015.5) that the statements below are true and correct for this request for judicial notice.

| # | Authority          | Specific requirement                    | This filing's compliance      | Evidence         |
|---|--------------------|-----------------------------------------|-------------------------------|------------------|
| 1 | Evid. Code 451–453 | Proper categories; neutral descriptions | Items list sources only       | Items for notice |
| 2 | CRC 3.1306(c)      | Request format and item list            | Numbered items with citations | RFJN body        |
| 3 | CRC 3.1113         | Organized authority references          | TOA or inline cites as used   | Body             |